

Orinth Vale Infrastructure - Closing Document

Orinth Vale 2025 Senior Secured Facility

EXECUTED CREDIT AGREEMENT

Issued January 10, 2025; effective January 15, 2025.

Borrower: Orinth Vale Infrastructure, LLC.

Administrative Agent: Cairn Ridge Private Credit, LP.

Facility: Orinth Vale 2025 Senior Secured Facility.

Effective date: January 15, 2025.

Commitment: \$65,360,723.38.

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DEFINITIONS

Covenant EBITDA means consolidated net income adjusted for interest, taxes, depreciation, and permitted noncash items.

Total Leverage Ratio means funded debt divided by trailing-twelve-month Covenant EBITDA.

Business Day and Reporting Date have their customary meanings under this agreement.

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FACILITY AND PAYMENTS

The \$65,360,723.38 term loan is fully funded at closing to refinance legacy debt; no delayed-draw or revolving capacity remains.

Maturity is January 15, 2030.

Scheduled monthly principal equals 0.60% of beginning funded debt and is due with monthly interest.

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INTEREST AND FEES

Interest accrues at SOFR plus 6.25%, subject to a 2.00% SOFR floor.

Interest is payable monthly in arrears; overdue amounts bear an additional 2.00% margin.

Closing fees are due under the executed fee letter.

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PREPAYMENTS

Voluntary prepayments are permitted with three Business Days' notice and accrued interest.

Asset-sale, casualty, and excess-cash proceeds require mandatory prepayment, subject to ordinary reinvestment rights.

Prepayments reduce outstanding principal and do not create new borrowing capacity.

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REPRESENTATIONS

The Borrower is duly organized, validly existing, and authorized to execute the loan documents.

Financial statements fairly present financial condition in all material respects.

Execution conflicts with no organizational document, law, or binding contract; taxes are current and no material litigation is undisclosed.

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AFFIRMATIVE COVENANTS

Maintain existence, properties, books, insurance, and compliance with law.

Pay taxes and obligations when due and preserve first-priority collateral liens.

Permit reasonable inspections and promptly notify the Agent of defaults and material events.

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NEGATIVE COVENANTS

Limit additional debt, liens, restricted payments, investments, asset sales, and affiliate transactions.

Do not merge, dissolve, change the fiscal year, or materially change the business except as expressly permitted.

Maintain all deposit accounts under required control arrangements.

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FINANCIAL COVENANT

Maximum Total Leverage Ratio: 5.50x.

The covenant is measured at each quarter end beginning March 31, 2025 using trailing-twelve-month Covenant EBITDA.

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EVENTS OF DEFAULT

Events include payment failure, covenant failure after any applicable cure period, materially incorrect representations, cross-default, judgment, insolvency

The Borrower must promptly notify the Agent after learning of an Event of Default.

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REMEDIES AND COLLATERAL

After an Event of Default, the Agent may accelerate obligations, terminate unused commitments, apply controlled cash, and exercise secured-party remedies.

Collateral includes accounts, inventory, equipment, deposit accounts, intellectual property, books, records, and proceeds.

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REPORTING

Monthly financial statements, cash flow, AP and AR support, and channel detail are due within 30 days.

Quarterly compliance certificates and covenant calculations are due within 45 days; annual statements are due within 90 days.

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GOVERNING LAW

New York law governs the agreement and related claims.

The parties consent to New York courts and waive jury trial to the extent permitted by law.

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EXECUTION

Borrower: Orinth Vale Infrastructure, LLC. By: Mara Sellen, Chief Financial Officer. Date: January 10, 2025.

Administrative Agent and Lender: Cairn Ridge Private Credit, LP. By: Dorian Cole, Managing Director. Date: January 10, 2025.

Document status: executed and operative.